

S E R V E D

September 21, 2017

FEDERAL MARITIME COMMISSION

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DOCKET NO. 17-05

CMI DISTRIBUTION, INC.

v.

**SERVICE BY AIR, INC., RADIANT CUSTOMS SERVICES INC. (FORMERLY
KNOWN AS SBA CONSOLIDATORS, INC.) and LAS FREIGHT SYSTEMS LTD.**

NOTICE TO THE PARTIES AND ORDER TO SCHEDULE CONFERENCE

1. On September 18, 2018, complainant CMI Distribution, Inc. (CMI) and respondents Service by Air, Inc., Radiant Customs Services Inc. (f/k/a SBA Consolidators, Inc.) (Radiant/SBA) filed a modified Complaint Exhibit 1 identifying eighteen containers on seventeen shipments that they agree were not transported by water from a foreign port to a port in the United States and hence are not subject to Commission subject matter jurisdiction. (Stipulation (filed Sept. 18, 2017) Ex. 1.) These containers are identified on modified Complaint Exhibit 1 as FLDR numbers 4, 12, 14, 15, 18, 20, 22, 23, 24, 26, 28, 30, 34, 39, 45, 55, 56, and 57. Therefore, the undersigned understands that CMI will not be seeking reimbursement for demurrage on these shipments as part of this proceeding.
2. Modified Complaint Exhibit 1 FLDR numbers 1, 5, 6, 7, 8, and 11 are marked "N/A." The undersigned understands that CMI does not claim to have paid any demurrage on these shipments.
3. Modified Complaint Exhibit 1 does not have FLDR numbers 31, 32, 35, 37, 38, 40, 41, 47, or 48.
4. The undersigned understands that CMI seeks a reparation award for modified Complaint Exhibit 1 FLDR numbers 2, 3, 9, 10, 13, 16, 17, 19, 21, 25, 27, 29, 33, 36, 42, 43, 44, 46, 49, 50, 51, 52, 53, 54, 58, 59, 60, 61, and 62.

5. Radiant/SBA attached the Declaration of Scott Stoppa to its Response to the August 16, 2017, Order to Supplement the record. Customs and Border Protection (CBP) Forms 3461 and other records related to individual shipments were attached to the Stoppa Declaration, including records for most shipments listed on Complaint Exhibit 1, but not for FLDR numbers 1, 2, 17, 36, 44, and 54. Stoppa states that he was “unable to access the remaining CBP forms 3461 because they are stored offsite in a manner [that] precludes me from accessing them within the timeframe allowed for this briefing.” (Supplemental Briefing in Further Support of Motion to Dismiss of Radiant/SBA, Stoppa Declaration ¶ 4.) The undersigned assumes that the records for FLDR numbers 1, 2, 17, 36, 44, and 54 are the records stored offsite.
6. Radiant/SBA attached records for shipments of eight containers that are not included on modified Complaint Exhibit 1 to its Response to the August 16, 2017, Order to Supplement the record. Three containers appear to have been transported by water to Canadian ports, not United States ports, and would not be within the Commission’s subject matter jurisdiction. (See Stoppa attachments at Stoppa 052-055 (PCIU8339388); Stoppa 130-132 (YMLU3069998); Stoppa 133-135 (TCKU3894500). Five containers appear to have been transported by water to United States ports. (See Stoppa 016-018 (TEXU7288541); Stoppa 019-021 (MSCU4832324);¹ Stoppa 093-095 (AKLU6300077 and KKFU1508648); Stoppa 113-115 (DFSU1543562).) It does not appear that CMI makes a claim regarding these shipments.

The parties are directed to consult with each other to establish a time on Thursday, September 21, 2017, or Friday, September 22, 2017, when they are available to appear for a telephone conference with the undersigned to discuss this Notice. The parties should then advise this Office of the date and time by email directed to judges@fmc.gov. The parties should also be prepared to tell the undersigned whether they believe there is any need to file responses to each other’s responses to the August 16, 2017, Order.



Clay G. Guthridge
Administrative Law Judge

¹ Container MSCU4807147, on the same CBP Form 3461 and Arrival Notice/Freight Notice as MSCU4832324, is listed on modified Complaint Exhibit 1 at FLDR 46.